

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

B.D., AN INFANT BY THEIR PARENT AND NATURAL
GUARDIAN, VANESSA DELOATCH, AND VANESSA
DELOATCH INDIVIDUALLY,

Plaintiffs,

-against-

CITY OF NEW YORK; JEREMY ALEXANDER;
BRENDAN ARENA; RAMSES CRUZ; FRANK
DIGIOVANNA; TIMOTHY FOX; MICHAEL HENDRIKS;
ELENI KARAGKOUNI; KEITH MEISNER; EDWARD
SERRATACABA; MICHAEL TUNG; JESSE WONG;
JOHN AND JANE DOE ONE THROUGH FIFTEEN,

Defendants.

----- X

SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

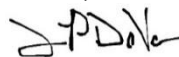
Plaintiff designates County as the
place of trial.

To the above named DEFENDANTS:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
September 26, 2024

Yours, etc.



JOHN PAUL DEVERNA ESQ PC
John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1850

New York, New York 10038
T- (212) 321-0025
F- (212) 321-0024

Defendants' Addresses:

CITY OF NEW YORK, Corporation Counsel; 100 Church Street, NY, NY 10007

JEREMY ALEXANDER; (Shield #25808; Tax #968928) 90th Precinct, 211 Union Avenue, Brooklyn, NY 11211

BRENDAN ARENA, (Shield #04606; Tax #967425) Police Service Area 3; 25 Central Avenue Brooklyn, NY 11206

RAMSES CRUZ; (Shield # 06083; Tax # 918899) 90th Precinct, 211 Union Avenue, Brooklyn, NY 11211

FRANK DIGIOVANNA; (Shield #01943; Tax #969655) Police Service Area 3, 25 Central Avenue Brooklyn, NY 11206

TIMOTHY FOX; (Tax # 944571) 90th Precinct, 211 Union Avenue, Brooklyn, NY 11211

MICHAEL HENDRIKS; (Shield #16879; Tax #893154) 90th Precinct, 211 Union Avenue, Brooklyn, NY 11211

ELENI KARAGKOUNI; (Shield #05241; Tax #972718) 90th Precinct, 211 Union Avenue, Brooklyn, NY 11211

KEITH MEISNER; (Shield #07069; Tax #963647) Police Service Area 3, 25 Central Avenue Brooklyn, NY 11206

EDWARD SERRATACABA; (Shield #06122; Tax #972951) 90th Precinct, 211 Union Avenue, Brooklyn, NY 11211

MICHAEL TUNG; (Shield #18086; Tax # 959318) 90th Precinct, 211 Union Avenue, Brooklyn, NY 11211

JESSE WONG; (Shield #30315; Tax # 973854) 90th Precinct, 211 Union Avenue, Brooklyn, NY 11211

JOHN AND JANE DOE ONE THROUGH FIFTEEN, 1 POLICE PLAZA PATH, NEW YORK, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

B.D., AN INFANT BY THEIR PARENT AND NATURAL
GUARDIAN, VANESSA DELOATCH, AND VANESSA
DELOATCH INDIVIDUALLY,

INDEX NO.:

VERIFIED COMPLAINT

Plaintiffs,

-against-

CITY OF NEW YORK; JEREMY ALEXANDER;
BRENDAN ARENA; RAMSES CRUZ; FRANK
DIGIOVANNA; TIMOTHY FOX; MICHAEL
HENDRIKS; ELENi KARAGKOUNI; KEITH MEISNER;
EDWARD SERRATACABA; MICHAEL TUNG; JESSE
WONG; JOHN AND JANE DOE ONE THROUGH
FIFTEEN,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiffs, B. D. (hereafter, "INFANT-PLAINTIFF"), an infant by their parent and natural guardian, VANESSA DELOATCH, and VANESSA DELOATCH (hereafter, "GUARDIAN-PLAINTIFF"), individually, complaining of the Defendants herein, by their attorneys, JOHN PAUL DEVERNA ESQ PC, as and for their Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of INFANT-PLAINTIFF's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York.

2. Plaintiffs' claims arise out of a June 29, 2023, incident, in which DEFENDANTS acting under color of state law, unlawfully used excessive force on INFANT-PLAINTIFF while other DEFENDANTS unlawfully failed to intervene in that use of excessive force.
3. As a result, INFANT-PLAINTIFF suffered serious physical and emotional injuries.
4. Plaintiffs, in furtherance of their cause of action brought pursuant to New York State law, filed a timely Notice of Claim against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50, in accordance with controlling New York State law and jurisprudence.
5. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims or otherwise resolved them.
6. Plaintiffs have complied with municipal defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law.
7. This action and all associated claims have been timely brought within the applicable statutes of limitations.
8. Plaintiffs have sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.
9. Plaintiffs seek monetary damages (compensatory and punitive) against DEFENDANTS, as well as an award of cost and attorneys' fees, and such other relief as the Court may deem just and proper.

PARTIES

10. At all times hereinafter mentioned, INFANT-PLAINTIFF was and still is a resident of the State of New York, in Kings County.

11. At all times hereinafter mentioned, GUARDIAN-PLAINTIFF, VANESSA DELOATCH, was the mother and natural guardian of the INFANT-PLAINTIFF.
12. At all times hereinafter mentioned, GUARDIAN-PLAINTIFF was and still is a resident of the State of New York, in Kings County.
13. The Defendant City of New York ("City") is a municipal corporation organized under the laws of the State of New York.
14. At all times relevant hereto, DEFENDANT City, acting through the NEW YORK CITY POLICE DEPARTMENT, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, agents, office holders, supervisors, as well as the individually named DEFENDANTs herein.
15. In addition, at all times here relevant, DEFENDANT City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
16. At all times relevant hereto, DEFENDANT City, acting through the NYPD, was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named DEFENDANTs herein.
17. In addition, at all times here relevant, DEFENDANT City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

18. Defendant JEREMY ALEXANDER (Shield #25808; Tax #968928), was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant ALEXANDER was, at the time relevant herein, a police officer in the 90th Precinct. Defendant ALEXANDER is sued in their individual and official capacities.
19. Defendant BRENDAN ARENA (Shield #04606; Tax #967425), was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant ARENA was, at the time relevant herein, a police officer in Police Service Area 3. Defendant ARENA is sued in their individual and official capacities.
20. Defendant RAMSES CRUZ (Shield #06083; Tax # 918899), was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant CRUZ was, at the time relevant herein, a police officer in the 90th Precinct. Defendant CRUZ is sued in their individual and official capacities.
21. Defendant FRANK DIGIOVANNA (Shield #01943; Tax #969655), was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant DIGIOVANNA was, at the time relevant herein, a police officer in Police Service Area 3. Defendant DIGIOVANNA is sued in their individual and official capacities.
22. Defendant TIMOTHY FOX (Tax # 944571), was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant FOX was, at the time relevant herein, a

police officer in the 90th Precinct. Defendant FOX is sued in their individual and official capacities.

23. Defendant MICHAEL HENDRIKS (Shield #16879; Tax #893154), was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant HENDRIKS was, at the time relevant herein, a police officer in the 90th Precinct. Defendant HENDRIKS is sued in their individual and official capacities.
24. Defendant ELENi KARAGKOUNI (Shield #05241; Tax #972718), was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant KARAGKOUNI was, at the time relevant herein, a police officer in the 90th Precinct. Defendant KARAGKOUNI is sued in their individual and official capacities.
25. Defendant KEITH MEISNER (Shield #07069; Tax #963647), was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant MEISNER was, at the time relevant herein, a police officer in Police Service Area 3. Defendant MEISNER is sued in their individual and official capacities.
26. Defendant EDWARD SERRATACABA (Shield #06122; Tax #972951), was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant SERRATACABA was, at the time relevant herein, a police officer in the 90th Precinct. Defendant SERRATACABA is sued in their individual and official capacities.

27. Defendant MICHAEL TUNG (Shield #18086; Tax #959318), was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant TUNG was, at the time relevant herein, a police officer in the 90th Precinct. Defendant TUNG is sued in their individual and official capacities.
28. Defendant JESSE WONG (Shield #30315; Tax # 973854), was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant WONG was, at the time relevant herein, a police officer in the 90th Precinct. Defendant WONG is sued in their individual and official capacities.
29. At all times relevant DEFENDANTs JOHN AND JANE DOE ONE THROUGH FIFTEEN were police officers, detectives, undercover police officers, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiffs do not know the real names and/or shield number of JOHN AND JANE DOE ONE THROUGH FIFTEEN, but such information is believed to be in the possession of the DEFENDANTs.
30. At all times relevant herein, DEFENDANTs JOHN AND JANE DOE ONE THROUGH FIFTEEN, were acting as agents, servants and employees of the City of New York and the NYPD. DEFENDANTs JOHN AND JANE DOE ONE THROUGH FIFTEEN, are sued in their individual and official capacities.
31. At all times relevant herein, the individual DEFENDANTs were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of

their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

FACTUAL CHARGES

32. On or about June 29, 2023, at approximately 04:00 PM, INFANT-PLAINTIFF was walking with her aunt in the vicinity of 30 Manhattan Avenue, Brooklyn, NY 11206.
33. On or about that date and time, DEFENDANTS, including DEFENDANTS JEREMY ALEXANDER; BRENDAN ARENA; RAMSES CRUZ; FRANK DIGIOVANNA; TIMOTHY FOX; MICHAEL HENDRIKS; ELENi KARAGKOUNI; KEITH MEISNER; EDWARD SERRATACABA; MICHAEL TUNG; JESSE WONG; JOHN AND JANE DOE 1-15, while acting in concert, falsely arrested and detained INFANT-PLAINTIFF.
34. INFANT-PLAINTIFF was not told what they were being arrested for.
35. INFANT-PLAINTIFF did not resist arrest a lawful arrest and complied with all lawful orders.
36. Based on information and belief, a DEFENDANT supervisor was present on the scene and did not stop the unlawful arrest of INFANT-PLAINTIFF.
37. At the time of INFANT-PLAINTIFF'S arrest, DEFENDANT officers did not have probable cause or reasonable suspicion to believe INFANT-PLAINTIFF had committed any criminal offense or violation of the law.

38. Further, given the information available, DEFENDANTS knew or should have known INFANT-PLAINTIFF was innocent of any wrongdoing or should have further inquired into the matter prior to making any arrest.
39. Further, INFANT PLAINTIFF, given their tender age, was not criminal responsible for their conduct, even if a crime had been committed.¹
40. After INFANT-PLAINTIFF's arrest, at the 90th Precinct, INFANT-PLAINTIFF was subjected to a search of the intimate parts of their body causing embarrassment and humiliation.
41. DEFENDANTS prepared false sworn affidavits and false police reports relating to INFANT-PLAINTIFF's arrest.
42. INFANT-PLAINTIFF was held for several hours before being released without any criminal charges.
43. INFANT-PLAINTIFF was held for several hours after her age was known to be less than 12 years old in contravention of NYPD policy
44. DEFENDANTs failed to notify GUARDIAN-PLAINTIFF, of their child's detention in contravention of NYS Law and NYPD policy.
45. DEFENDANTs failed to notify the Juvenile Crime Desk as required by NYPD policy.
46. For periods of her detention, DEFENDANTs held INFANT-PLAINTIFF in areas in which adults detainees were held in contravention of NYPD policy.
47. GUARDIAN-PLAINTIFF, who had heard of their child's arrest from non-law enforcement, drove from precinct to precinct to find their child. When GUARDIAN-

¹ See Penal Law 30.00

- PLAINTIFF arrived at the precinct which was holding INFANT-PLAINTIFF, DEFENDANT officers denied INFANT-PLAINTIFF was present at the precinct.
48. DEFENDANT officers only produced INFANT-PLAINTIFF after the INFANT-PLAINTIFF called out to GUARDIAN-PLAINTIFF.
49. On or about June 29, 2023, at approximately 04:00 PM, INFANT-PLAINTIFF was in the vicinity of 30 Manhattan Avenue, Brooklyn, NY 11206 walking with her aunt, and thereafter, DEFENDANT Officers, including DEFENDANT JEREMY ALEXANDER; BRENDAN ARENA; RAMSES CRUZ; FRANK DIGIOVANNA; TIMOTHY FOX; MICHAEL HENDRIKS; ELENi KARAGKOUNI; KEITH MEISNER; EDWARD SERRATACABA; MICHAEL TUNG; JESSE WONG; JOHN AND JANE DOE 1-15, while acting in concert, each aiding the other, without adequate cause and in contravention of NYPD policies and procedures and the law more generally, assaulted INFANT-PLAINTIFF.
50. During the assault, these DEFENDANTS, among other things, pulled INFANT-PLAINTIFF's shirt collar, pulled her arms, pressed INFANT-PLAINTIFF's body firmly against a concrete wall, as well as handcuffed INFANT-PLAINTIFF in an excessively tight manner.
51. Thereafter, and while still at the scene, DEFENDANTS, acting in concert, repeatedly lifted and dropped INFANT-PLAINTIFF, and caused INFANT-PLAINTIFF to hit her head upon the police vehicle.
52. INFANT-PLAINTIFF was later transferred to the Police Service Area 3 Precinct, located at 25 Central Avenue Brooklyn, NY 11206 then to the 90th Precinct, located at 211 Union Avenue, Brooklyn, NY 11211.

53. While at the precinct, INFANT-PLAINTIFF was searched by an unidentified male officer who placed his hand into the front pockets of INFANT-PLAINTIFF's pants.
54. While in custody, DEFENDANT officers pressed INFANT-PLAINTIFF's face and neck against a metal bar making it difficult for INFANT-PLAINTIFF to breathe and causing injury.
55. While in custody, DEFENDANT officers placed a mask over INFANT-PLAINTIFF's face and neck affecting her breathing and making her embarrassed and alarmed.
56. While in custody, DEFENDANT officers handcuffed INFANT-PLAINTIFF to a fixed object in contravention of NYPD policy, causing her physical and emotional injuries.
57. DEFENDANTS' actions did cause INFANT-PLAINTIFF to become fearful for their life and safety and did cause emotional and physical injuries to INFANT-PLAINTIFF, the extent of which is unknown.
58. Some of the DEFENDANT officers, as well as the DEFENDANT City, knew or should have had reason to know of the assaulting officers' temperament and propensity for violence yet failed to appreciate the risk posed to the public and further failed to take adequate precautions to prevent the conduct as described herein.
59. DEFENDANTS were knowingly and deliberately indifferent to the possibility that its police officers, were wont to violate the constitutional rights of arrestees as described herein.
60. DEFENDANT Officers placed INFANT-PLAINTIFF in unreasonably tight metal handcuffs, which INFANT-PLAINTIFF complained about, and which did cause severe injuries to INFANT-PLAINTIFF's wrists.

61. Defendant's use of metal handcuffs on INFANT-PLAINTIFF was in contravention of NYPD policy.
62. The force used by DEFENDANTS caused INFANT-PLAINTIFF personal, physical, and emotional injuries for which they later sought medical treatment.
63. DEFENDANTS repeatedly falsified information relating to the facts and circumstances surrounding INFANT-PLAINTIFF's arrest.
64. During all of the events described, DEFENDANTS acted maliciously, willfully, knowingly and with the specific intent to injure INFANT-PLAINTIFF and violate their civil rights.
65. Some of the DEFENDANT officers who did not participate in the incident but were otherwise present and observed the violation of INFANT-PLAINTIFF's constitutional rights failed to intercede on INFANT-PLAINTIFF's behalf.
66. INFANT-PLAINTIFF's injury was a foreseeable result of DEFENDANT officers' unlawful conduct and was the proximate cause of their injuries.
67. The City has been on notice that DEFENDANTS; JEREMY ALEXANDER; BRENDAN ARENA; RAMSES CRUZ; FRANK DIGIOVANNA; TIMOTHY FOX; MICHAEL HENDRIKS; ELENI KARAGKOUNI; KEITH MEISNER; EDWARD SERRATACABA; MICHAEL TUNG; JESSE WONG; JOHN AND JANE DOE 1-15, had a history and practice of misconduct against individuals but failed to take appropriate corrective action. Indeed, a review of their CCRB and Civil lawsuit history² of each shows the following: JEREMY ALEXANDER (7 CCRB complaints with 0 substantiated

² The cited information was procured from Law Enforcement Lookup (LELU) "an extension of the Legal Aid Society's Cop Accountability Project (CAP), which empowers organizations and communities across New York City to hold police officers accountable for civil rights violations" See <https://legalaidnyc.org/law-enforcement-look-up/>. See also <https://www.nyc.gov/site/ccrb/policy/MOS-records.page> and <https://www.50-a.org/>.

allegation on 4 different dates); RAMSES CRUZ (14 CCRB complaints with 0 substantiated allegations on 7 different dates, as well as being a named officer in several lawsuits alleging police misconduct including, EDNY 13CV02459, EDNY 24CV03158); TIMOTHY FOX (25 CCRB complaints with 3 substantiated allegations on 13 different dates, as well as being a named officer in at least one lawsuit alleging police misconduct including EDNY 14CV02285); MICHAEL HENDRIKS (8 CCRB complaints with 0 substantiated allegations on 4 different dates); ELENI KARAGKOUNI (7 CCRB complaints with 0 substantiated allegations on 2 different dates); KEITH MEISNER (15 CCRB complaints with 4 substantiated allegations on 4 different dates, as well as being a named officer in a lawsuit alleging police misconduct including Supreme Court – Kings 510562/2024); EDWARD SERRATACABA (2 CCRB complaints with 1 substantiated allegations on 1 date); MICHAEL TUNG (3 CCRB complaints with 0 substantiated allegations on 3 different dates); JESSE WONG (1 CCRB complaints with 0 substantiated allegations).

68. The City has been on notice for more than a generation that brutality is widespread and that particular reforms need to be implemented. From reform-minded Commissioner Patrick Murphy to the *Mollen* Commission twenty-five years later, the City has been repeatedly cautioned that a systemic tolerance for brutality flourishes throughout the NYPD. Indeed, years before said violation was perpetrated upon INFANT-PLAINTIFF, the *Mollen* Commission report noted, “This tolerance, or willful blindness, extends to supervisors as well.
69. Plaintiffs assert that the DEFENDANTS who violated INFANT-PLAINTIFF’s civil rights, are part of a larger pattern and practice of similar conduct, which is so widespread,

pervasive and consistent throughout the NYPD, and the City of New York that the commission of such constitutionally violent behavior has become tantamount to an official policy or custom within the NYPD, and the City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the Civil Rights of those who may come into contact with police officers.

70. The individually named DEFENDANTS herein, as well as other officers serving in the employee of the NYPD, and the City of New York, have blatantly, shamelessly, consistently, and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by the Constitution of the United States, in addition to the laws and Constitution of the State of New York, or without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, The City of New York and their respective policymakers and supervisors.
71. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption with the NYPD, and City of New York, particularly the incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation or subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses. Also detailed, is the NYPD obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead reward and promote these officers including those who are implicated via some incontrovertible form of evidence.

72. On March 18, 2018, *The New York Times* published an explosive article entitled *Promotions, Not Punishments For Officers Accused of Lying*, written by Joseph Goldstein. Mr. Goldstein shines the light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity of this type of evidence, in alarmingly small percentage of officers' misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's reluctance to investigate or disciplines officers who lie and posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusation relating to the officers intentionally false statements, with some allegations coming from federal and state judges.
73. The NYPD has a long-standing and ignominious record of failing to discipline its officers or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York Times* published an article entitled *2495 Reports of Police Bias*. One was deemed valid by the NYPD worried that within the last five years almost 2,500 several individuals have filed formal complaint with the NYPD alleging that an officer acted with biased towards them, would not one single being substantiated by the NYPD such a finding is playing the incredible and obviously the result of a deliberately poor or non-existent investigatory protocol the report commitment to combat the prejudices and the bias is exhibited by many of their officers.

74. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in INFANT-PLAINTIFF's arrest without probable cause.
75. Upon information and belief, the NYPD, the city of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reason suspicion or the appropriate amount of force to be used.
76. Defendant's actions, pursuant to INFANT-PLAINTIFF's underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of INFANT-PLAINTIFF's civil rights that the tacit approval by the policymakers or supervisors of the NYPD, and the City of New York, as well as their deliberate indifference towards the right of any individuals who may come into contact with dependents, should be inferred, because such makers deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers were supervisors of the NYPD, and City of New York.
77. Upon information and belief further details and facts relating to the unlawful policies customs or patterns and practices of the NYPD, the City of New York and their respective policymakers, supervisors, police officers, or employees, will become known after the completion of Discovery, as such information is presently within the exclusive possession of DEFENDANTs, the NYPD, and the City of New York.
78. Upon information and belief, the personal files, records and disciplinary histories of the officers DEFENDANTs will reveal a history of constitutional violations indicative of

DEFENDANT City's, knowledge that the individual officer DEFENDANTs were unfit for employment as NYPD officers, or poor employment in general, and that the probability of the individually named defendant committed similar violations in the future was extremely high.

79. Upon information and belief said personnel files records and disciplinary histories will conclusively show that the city, and the NYPD were fully aware Defendant passed constitutional violations, unacceptably high probability for the reoccurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as Law Enforcement Officers, or for employment in general, and not the NYPD, and the City of New York to engage in any preventative or corrective action in the likelihood of recurrence for such violations, which is tantamount to the city of tacit approval of such misconduct or the city's deliberate indifference towards civil rights of those who may interact with employees including the INFANT-PLAINTIFF.
80. As a direct and proximate result of the acts of DEFENDANTs, INFANT-PLAINTIFF suffered the following injuries and damages: violation of their rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution, physical injury, physical pain and suffering, emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.
81. As a direct and proximate result of the acts of DEFENDANTs, the GUARDIAN-PLAINTIFF was prevented from attending her occupation causing a loss of past and future earnings, incurred and will incur in the future considerable expenses for medical and

hospital care and treatment, and was deprived of the love, society, services, companionship, and affection of INFANT-PLAINTIFF, all to her detriment.

CAUSE OF ACTION

Unlawful Stop and Search
Under New York State Law

82. The above paragraphs are here incorporated by reference as though fully set forth.
83. DEFENDANTs violated Common Law, the Laws of the State of New York and the New York Constitution because they stopped INFANT-PLAINTIFF without reasonable suspicion.
84. Defendant City, as employer of the individual DEFENDANTs, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
85. As a direct and proximate result of this unlawful conduct, INFANT-PLAINTIFF sustained the damages hereinbefore alleged, including but not limited to emotional and psychological injuries.
86. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION

Unlawful Stop and Search
Under 42 U.S.C. § 1983 Against Individual Defendants

87. The above paragraphs are here incorporated by reference as though fully set forth.
88. The individually named police officer DEFENDANTs while acting in concert and within the scope of their authority, caused INFANT-PLAINTIFF to be unlawfully stopped and searched, and subjected to denial of their due process rights and denied the right to a fair trial without probable cause in violation of INFANT-PLAINTIFF's right to be free of an unreasonable stop and seizure and denial of due process under the Fourth and Fifth and

Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

89. DEFENDANTs were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
90. Defendant City, as employer of the individual DEFENDANTs, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
91. By reason of the foregoing, INFANT-PLAINTIFF suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.
92. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION

False Arrest and False Imprisonment
Under New York State Law

93. The above paragraphs are here incorporated by reference as though fully set forth.
94. DEFENDANTs subjected INFANT-PLAINTIFF to false arrest, false imprisonment, and deprivation of liberty without probable cause.
95. INFANT-PLAINTIFF was conscious of their confinement.
96. INFANT-PLAINTIFF did not consent to their confinement.
97. INFANT-PLAINTIFF's arrest and false imprisonment was not otherwise privileged.
98. Defendant City, as employer of the individual DEFENDANTs, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

99. As a direct and proximate result of this unlawful conduct, INFANT-PLAINTIFF sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
100. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION

False Arrest and False Imprisonment
Under 42 U.S.C. § 1983 Against Individual Defendants

101. The above paragraphs are here incorporated by reference as though fully set forth.
102. The DEFENDANTs violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning INFANT-PLAINTIFF.
103. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of INFANT-PLAINTIFF was carried out without a valid warrant, without INFANT-PLAINTIFF's consent, and without probable cause or reasonable suspicion.
104. At all relevant times, DEFENDANTs acted forcibly in apprehending, arresting, and imprisoning INFANT-PLAINTIFF.
105. Defendant City, as employer of the individual DEFENDANTs, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
106. As a direct and proximate result of this unlawful conduct, INFANT-PLAINTIFF sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries.
107. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION

Failure to Intervene
Under New York State Law

108. The above paragraphs are here incorporated by reference as though fully set forth.
109. Those DEFENDANTs that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
110. Defendant City, as employer of the individual DEFENDANTs, is responsible for their wrongdoings under the doctrine of *respondeat superior*.
111. As a direct and proximate result of this unlawful conduct, INFANT-PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION

Failure to Intervene
Under 42 U.S.C. § 1983 Against Individual Defendants

112. The above paragraphs are here incorporated by reference as though fully set forth.
113. Those DEFENDANTs that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.
114. Accordingly, the DEFENDANTs who failed to intervene violated the Fourth and Fourteenth Amendments.
115. As a direct and proximate result of this unlawful conduct, INFANT-PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION

Malicious Abuse of Process
Under New York State Law

116. The above paragraphs are here incorporated by reference as though fully set forth.

117. Dependents arrested, detained and caused a criminal prosecution to be initiated against INFANT-PLAINTIFF to compel the compliance or forbearance of some act.
118. DEFENDANTS had no excuse or justification to forcibly detain or initiate a prosecution against INFANT-PLAINTIFF, especially with the absence of any cognizable probable cause.
119. Defendant intended to inflict substantial harm upon INFANT-PLAINTIFF.
120. Defendant acted to achieve a collateral purpose, beyond or in addition to INFANT-PLAINTIFF's criminal prosecution.
121. Defendant City, as employer of the individual DEFENDANTS, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
122. As a direct and proximate result of this unlawful conduct, INFANT-PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION

Malicious Abuse of Process

Under 42 U.S.C. § 1983 Against Individual Defendants

123. The above paragraphs are here incorporated by reference as though fully set forth.
124. Dependents arrested, detained and caused a criminal prosecution to be initiated against INFANT-PLAINTIFF to compel the compliance or forbearance of some act.
125. DEFENDANTS had no excuse or justification to forcibly detain or initiate a prosecution against INFANT-PLAINTIFF, especially with the absence of any cognizable probable cause.
126. Defendant intended to inflict substantial harm upon INFANT-PLAINTIFF.
127. Defendant acted to achieve a collateral purpose, beyond or in addition to INFANT-PLAINTIFF's criminal prosecution.

128. Defendant's actions deprived INFANT-PLAINTIFF of their constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.
129. As a direct and proximate result of this unlawful conduct, INFANT-PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION

Assault and Battery Under
New York State Law

130. The above paragraphs are here incorporated by reference as though fully set forth.
131. DEFENDANTS made INFANT-PLAINTIFF fear for their physical well-being and safety and placed INFANT-PLAINTIFF in apprehension of immediate harmful and/or offensive touching.
132. DEFENDANTS engaged in and subjected INFANT-PLAINTIFF to immediate harmful and/or offensive touching and battered them without their consent.
133. Defendant City, as employer of the individual DEFENDANTS, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
134. As a direct and proximate result of this breach, INFANT-PLAINTIFF sustained the damages hereinbefore alleged, including but not limited to physical, emotional and psychological injuries, as well as to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment all of which are believed will for a long time to come.
135. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION

Excessive Force Under
42 U.S.C. § 1983

136. The above paragraphs are here incorporated by reference as though fully set forth.
137. The DEFENDANTs, violated the Fourth, Eighth, and Fourteenth Amendments because they used unreasonable force on the INFANT-PLAINTIFF without consent.
138. As a direct and proximate result of this unlawful conduct, INFANT-PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION

Intentional Infliction of Emotional Distress
Under New York State Law

139. The above paragraphs are here incorporated by reference as though fully set forth.
140. DEFENDANTs seized and arrested INFANT-PLAINTIFF without permission, a warrant, exigent circumstances, or otherwise legal basis to do so.
141. By unlawfully and forcibly arresting INFANT-PLAINTIFF and defendant proceeding to repeatedly assault INFANT-PLAINTIFF, DEFENDANTs intentionally and for the purpose of causing severe emotional distress recklessly conducted themselves towards INFANT-PLAINTIFF in a manner so shocking and outrageous that it exceeded all reasonable bounds of decency resulting in causing INFANT-PLAINTIFF severe emotional distress.
142. DEFENDANTs were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
143. Defendant City, as employer of the individual DEFENDANTs, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

144. By reason of the foregoing, INFANT-PLAINTIFF suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.
145. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION

Intentional Infliction of Emotional Distress
Under New York State Law

146. The above paragraphs are here incorporated by reference as though fully set forth.
147. DEFENDANTS seized and arrested INFANT-PLAINTIFF without permission, a warrant, exigent circumstances, or otherwise legal basis to do so.
148. By unlawfully and forcibly arresting INFANT-PLAINTIFF and defendant proceeding to repeatedly assault INFANT-PLAINTIFF, DEFENDANTS intentionally and for the purpose of causing severe emotional distress recklessly conducted themselves towards INFANT-PLAINTIFF in a manner so shocking and outrageous that it exceeded all reasonable bounds of decency resulting in causing GUARDIAN-PLAINTIFF severe emotional distress, being prevented from attending her occupation causing a loss of past and future earnings, incurred and will incur in the future considerable expenses for medical and hospital care and treatment, and was deprived of the love, society, services, companionship, and affection of INFANT-PLAINTIFF, all to her detriment.
149. DEFENDANTS were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

150. Defendant City, as employer of the individual DEFENDANTs, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
151. By reason of the foregoing, GUARDIAN-PLAINTIFF suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.
152. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.

CAUSE OF ACTION

Municipal “Monell” Liability
42 U.S.C. § 1983 Against Individual Defendants

153. The above paragraphs are here incorporated by reference as though fully set forth.
154. DEFENDANTs, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the INFANT-PLAINTIFF’s constitutional rights.
155. Defendant City maintained a policy or custom that caused INFANT-PLAINTIFF to be deprived of their civil rights, tacitly approved of such violent conduct or was deliberately indifferent toward the potential exposure of individuals, such as INFANT-PLAINTIFF to such a violent behavior.
156. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of them.
157. Defendant City, it’s policymakers and supervisors fail to provide adequate training or supervision to their subordinates, to such an extent that it is tantamount to the City’s

deliberate indifference towards the rights of those who may come into contact with defendant City's employees.

158. Defendant City's employees engaged in such a egregious and flagrant violations of INFANT-PLAINTIFF's constitutional right that the need for enhanced training or supervision is obvious and equates to a display of indifference towards the rights of individuals, who may come into contact with infinite City's employees.
159. Defendant City's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violent behaviors or a deliberate indifference to the rights of those who may be affected by such behavior.

CAUSE OF ACTION

Negligent Hiring, Retention and Supervision
Under New York State Law

160. The above paragraphs are here incorporated by reference as though fully set forth.
161. Defendant City owed a duty of care to INFANT-PLAINTIFF and GUARDIAN PLAINTIFF to adequately hire, retain and supervise its employee DEFENDANTS.
162. Defendant City breached that duty of care.
163. Defendant City placed DEFENDANTS in a position where they could inflict foreseeable harm.
164. Defendant City knew or should have known of its employee DEFENDANTS' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by INFANT-PLAINTIFF and GUARDIAN PLAINTIFF.

165. Defendant City failed to take reasonable measures in hiring, retaining and supervising its employee DEFENDANTS that would have prevented the aforesaid injuries to INFANT-PLAINTIFF and GUARDIAN PLAINTIFF.
166. As a direct and proximate result of this unlawful conduct, INFANT-PLAINTIFF and GUARDIAN PLAINTIFF sustained the damages hereinbefore alleged.
167. By reason of the above, the amount of damages sought on this cause of action exceeds the jurisdictional limits of all lower Courts which would otherwise have jurisdiction.
168. Defendant City's conduct cause the violation of INFANT-PLAINTIFF's civil rights enumerated within the Constitution of the United States pursuant to the Fourth, Sixth, and Fourteenth and under rights including:
- a) Not to be deprived of liberty without due process of law;
 - b) To be free from seizure and arrest not based upon probable cause;
 - c) Not to have summary punishment imposed upon them; and
 - d) To receive equal protection under the law.
169. As a direct and proximate result of this conduct, INFANT-PLAINTIFF and GUARDIAN PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION

Individual Defendant Officer's Violation of INFANT-PLAINTIFF's AC 8-802 Rights

170. The above paragraphs are here incorporated by reference as though fully set forth.
171. Defendant Officers' acts constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.
172. Defendant Officers' acts caused INFANT-PLAINTIFF to be deprived of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to

be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

173. Defendant Officers, while in uniform, unlawfully seized, assaulted, frisked, and searched the INFANT-PLAINTIFF, before detaining INFANT-PLAINTIFF, and further causing their detention.
174. As a direct and proximate result of this conduct, INFANT-PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of INFANT-PLAINTIFF AC 8-802 Rights

175. The above paragraphs are here incorporated by reference as though fully set forth.
176. Defendant Officers' acts constituted conduct under color of any law, ordinance, rule, regulation, custom, or usage.
177. Defendant Officers had a duty to protect INFANT-PLAINTIFF from violations of their rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 802, to wit: to be secure in their person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.
178. Defendant officers that did not physically touch INFANT-PLAINTIFF but were present when other officers violated INFANT-PLAINTIFF's AC 8-802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.
179. DEFENDANTS failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect INFANT-PLAINTIFF from violation of their rights.

180. As a direct and proximate result of this conduct, INFANT-PLAINTIFF sustained the damages hereinbefore alleged.

CAUSE OF ACTION

Violation of Article I, § 12 of the New York State Constitution

181. The above paragraphs are here incorporated by reference as though fully set forth.

182. Such conduct breached the protections guaranteed to INFANT-PLAINTIFF by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of their person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from arrest as an infant;
- iv. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention INFANT-PLAINTIFF was aware and did not consent;
- v. freedom from the lodging of false charges against them by police officers and prosecutors, including on information and belief, by some or all of the individual DEFENDANTS; and
- vi. freedom from deprivation of liberty without due process of law.

183. By reason of the foregoing, INFANT-PLAINTIFF suffered mental injuries, economic injury, deprivation of property, liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

JURY DEMAND

184. Plaintiffs hereby demands trial by jury of all issues properly triable thereby.

WHEREFORE, Plaintiffs respectfully requests judgment against DEFENDANTS, jointly and severally:

- a) For each and every of the previously stated Cause(s) of Action, a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter; and
- b) Awarding Plaintiffs reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;
- c) Together with the costs and disbursements of this action, interest and such other relief as is appropriate under the law.

Dated: New York, New York
September 26, 2024



JOHN PAUL DEVERNA ESQ PC
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1850
New York, New York 10038
T- (212) 321-0025
F- (212) 321-0024

ATTORNEY'S VERIFICATION

JOHN PAUL DEVERNA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a counsel of the law firm of **JOHN PAUL DEVERNA ESQ PC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county where I maintain my office.

DATED: New York, New York
September 26, 2024



JOHN PAUL DEVERNA ESQ PC
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1850
New York, New York 10038
T- (212) 321-0025
F- (212) 321-0024

Index No.:

SUPREME COURT OF THE STATE OF NEW YORK

COUNTY OF KINGS

B.D., AN INFANT BY THEIR PARENT AND NATURAL GUARDIAN, VANESSA DELOATCH, AND VANESSA DELOATCH INDIVIDUALLY,

Plaintiffs,

-against-

CITY OF NEW YORK; JEREMY ALEXANDER; BRENDAN ARENA; RAMSES CRUZ;
FRANK DIGIOVANNA; TIMOTHY FOX; MICHAEL HENDRIKS; ELEN
KARAGKOUNI; KEITH MEISNER; EDWARD SERRATACABA; MICHAEL TUNG;
JESSE WONG; JOHN AND JANE DOE ONE THROUGH FIFTEEN,

DEFENDANTs.

SUMMONS AND VERIFIED COMPLAINT

JOHN PAUL DEVERNA ESQ PC
By John Paul DeVerna, Esq.
Attorney for Plaintiff(s)
111 John Street, Suite 1850
New York, New York 10038

To: CORPORATION COUNSEL OF NEW YORK
Attorney(s)for DEFENDANTs

Service of a copy of the within is hereby admitted.

Dated

Attorney(s) for

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
B.D., AN INFANT BY THEIR PARENT AND NATURAL GUARDIAN, VANESSA DELOATCH, AND
VANESSA DELOATCH INDIVIDUALLY,

PLAINTIFF/PETITIONER,

Index No.:

-against-

CITY OF NEW YORK; JEREMY ALEXANDER; BRENDAN ARENA; RAMSES CRUZ; FRANK
DIGIOVANNA; TIMOTHY FOX; MICHAEL HENDRIKS; ELENI KARAGKOUNI; KEITH MEISNER;
EDWARD SERRATACABA; MICHAEL TUNG; JESSE WONG; JOHN AND JANE DOE ONE THROUGH
FIFTEEN,

DEFENDANT/RESPONDENT.
-----X

**NOTICE OF ELECTRONIC FILING
(Mandatory Case)
(Uniform Rule § 202.5-bb)**

You have received this Notice because:

- 1) The Plaintiff/Petitioner, whose name is listed above, has filed this case using the New York State Courts E-filing system ("NYSCEF"), and
- 2) You are a Defendant/Respondent (a party) in this case.

• **If you are represented by an attorney:**

Give this Notice to your attorney. (Attorneys: see "Information for Attorneys" pg. 2).

• **If you are not represented by an attorney:**

You will be served with all documents in paper and you must serve and file your documents in paper, unless you choose to participate in e-filing.

If you choose to participate in e-filing, you must have access to a computer and a scanner or other device to convert documents into electronic format, a connection to the internet, and an e-mail address to receive service of documents.

The benefits of participating in e-filing include:

- serving and filing your documents electronically
- free access to view and print your e-filed documents
- limiting your number of trips to the courthouse
- paying any court fees on-line (credit card needed)

To register for e-filing or for more information about how e-filing works:

- visit: www.nycourts.gov/efile-unrepresented or
- contact the Clerk's Office or Help Center at the court where the case was filed. Court contact information can be found at www.nycourts.gov

To find legal information to help you represent yourself visit www.nycourthelp.gov

**Information for Attorneys
(E-filing is Mandatory for Attorneys)**

An attorney representing a party who is served with this notice must either:

- 1) immediately record his or her representation within the e-filed matter on the NYSCEF site www.nycourts.gov/efile ; or
- 2) file the Notice of Opt-Out form with the clerk of the court where this action is pending and serve on all parties. Exemptions from mandatory e-filing are limited to attorneys who certify in good faith that they lack the computer hardware and/or scanner and/or internet connection or that they lack (along with all employees subject to their direction) the knowledge to operate such equipment. [Section 202.5-bb(e)]

For additional information about electronic filing and to create a NYSCEF account, visit the NYSCEF website at www.nycourts.gov/efile or contact the NYSCEF Resource Center (phone: 646-386-3033; e-mail: nyscef@nycourts.gov).

Dated:

JOHN PAUL DEVERNA
Name

111 John Street, Suite 1850

JOHN PAUL DEVERNA ESQ PC
Firm Name

New York, NY 10038

(212) 321-0025
Phone

jpd@mynylawyer.com
E-mail

To: _____

Index #

Page 2 of 2

EFM-1